



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-102 | 4614 E Pershing Blvd. – Assigned Zoning
Date: August 12, 2024

Background:

The item for consideration is an Assigned Zoning. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 8/12/2024
- Public Services Committee 8/20/2024
- Second reading 8/26/2024
- Public Services Committee 9/4/2024
- Third and final reading 9/9/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their August 5, 2024 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Related Items:

- PUDC-24-102: Annexation

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF MUR MIXED-USE RESIDENTIAL FOR LAND ANNEXED TO THE CITY OF CHEYENNE LOCATED EAST OF US-30 AND NORTH OF AND ADJACENT TO EAST PERSHING BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. James O'Connor, owner of:

Lots 33 and 34, Sunnyside Addition, 4th Filing, Resub TR 137-140

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof.

Section 2. That Section 2.2.8 of the UDC provides standards and procedures for zoning districts established on land or property currently without a City zone assignment including land being annexed to the city.

Section 3. That on August 5, 2024, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning classifications of the real property as described in Section 1 is hereby established as MUR Mixed-use Residential.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 5 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

AUGUST 5, 2024

STAFF REPORT

FILE: PUDC-24-102: 4614 E Pershing Blvd. – Assigned Zoning

LOCATION: East of US-30 and north of and adjacent to E Pershing Blvd.

REQUEST: Assigning the MUR zone to a property that has petitioned for annexation.

ANNEXATION APPLICANT: Jack Studley

OWNER: James O'Connor

ZONING: County MU

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: To establish City zoning district concurrent with annexation.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for land east of US-30 and north of and adjacent to E Pershing Blvd. to MUR Mixed-use Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

The applicant has petitioned for land east of US-30 and north of and adjacent to E Pershing Blvd. to be annexed into city limits. Annexation of a parcel requires a city zone to be established. Per UDC 2.2.8 a zone will be assigned based on the underlying county zone and per the policy document adopted by the city. Should the applicant wish to have a different zone at the time of annexation, they will be required to submit a subsequent zoning map amendment, proposing a different zone. The applicant is not requesting a different City zone at this time.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) **The assigned zone is the most analogous City zone to the current zone when considering allowed uses. Zoning for standard County zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis. (UDC 2.2.8.d.1)**

The underlying county zone is MU Mixed-use. The most analogous city zone is MUR Mixed-use Residential according to the policy document. The Assigned Zoning policy document is attached to the staff report as attachment number two.

Establishment of the City zone matches the policy document; therefore, the item **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.

3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

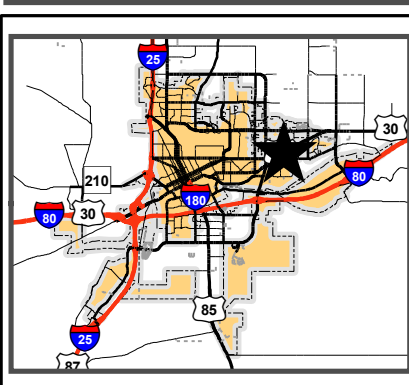
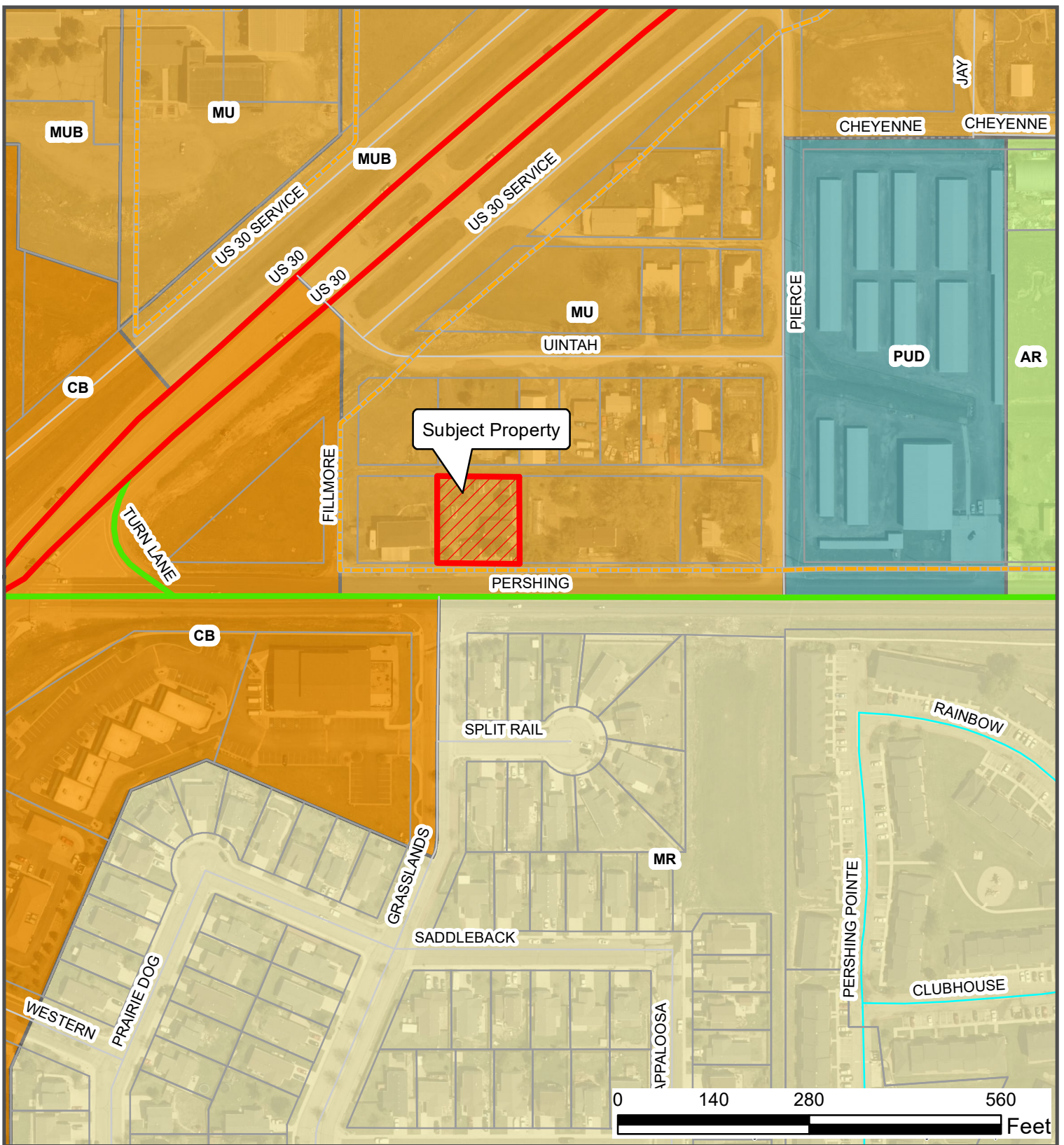
If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for land east of US-30 and north of and adjacent to E Pershing Blvd. to MUR Mixed-use Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Zoning Map
2. Assigned Zoning Policy Document
3. Use Differences



Attachment 1: Zoning Map PUDC-24-102

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

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| <ul style="list-style-type: none"> Nov19_CityLimits Interstate Principal Arterial Minor Arterial Major Collector Minor Collector Local Private Platted not built HR / High Density Residential MR / Medium Density Residential LR / Low Density Residential NR-2 / Neighborhood Residential - Med. Density NR-3 / Neighborhood Residential - High Density AR / Agricultural Residential | <ul style="list-style-type: none"> A-1 / Agricultural and Rural Residential A-2 / Agricultural AG / City Agricultural MUR / Mixed Use Residential Emphasis CBD / Central Business District CB / Community Business NB / Neighborhood Business MU / Mixed Use - County MUB / Mixed Use Business Emphasis MUE / Mixed Use Employment Emphasis HI / Heavy Industrial LI / Light Industrial P / Public AD / Airport District PUD / Planned Unit Development X / Exempt |
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City of Cheyenne

Planning and Development Department
2101 O'Neil Avenue, Room 202 Cheyenne, WY 82001
www.cheyennecity.org/PlanningAndDevelopment

Assigned Zone Chart

Underlying County Zone	Analagous City Zone
AR - Agricultural Residential	AR - Agricultural Residential
A1 - Agricultural and Rural Residential	AG - Agriculture
A2 - Agricultural	AG - Agriculture
LR - Low Density Residential	LR - Low Density Residential
MR - Medium Density Residential	MR - Medium Density Residential
HR - High Density Residential	HR - High Density Residential
NB - Neighborhood Business	NB - Neighborhood Business
CB - Community Business	CB - Community Business
LI - Light Industrial	LI - Light Industrial
HI - Heavy Industrial	HI - Heavy Industrial
P - Public	P - Public
MU - Mixed Use	MUR - Mixed-use Residential
Zone not listed above	Based on existing uses

City MUR - MIXED-USE RESIDENTIAL
<i>Uses By Right</i>
Detached Dwelling
Semi-attached Dwelling (“Duplex”)
Attached Dwelling (“Townhouse”)
Cottage Lots
Dormitories
Multi-dwelling Building (“Apartment”)
Live/Work
Mixed-use Dwelling
Assisted Living / Nursing Home
Child Care, In Home - Minor
Lodging, Bed and Breakfast
Home occupations
Office – Limited (<3,500)
Food Service – Limited (under 2K)
Government Facility
<i>Uses requiring Administrative approval</i>
Accessory Dwelling
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Cemeteries
Primary and secondary schools
Community Athletic Field
Service Business - Limited
Child Care, In Home - Major
Office – general (3,500 – 20K)
Convenience Retail / Corner Store (<2k)
Neighborhood Retail (2K - 5K)
Outdoor Sales, Limited
Limited Industrial
Utility Stations

County MU - MIXED USE
<i>Uses By Right</i>
Single family, townhouse, duplex residential
Mixed use residential developments
Family child care homes
Home occupations
Churches, temples or other places of worship
Offices
Multi-family residential
The retail sale of goods when the use is proposed in a building and the sale and storage of equipment and supplies are conducted within the building.
Child care facilities
Assisted living facilities
<i>Uses requiring Board Approval (Conditional Use)</i>
Food service facilities
Bars, cocktail lounges and liquor stores
Other uses similar to those permitted in this district
Entertainment facilities
Outdoor storage in association with an approved use

<i>Uses requiring Board Approval (Conditional Use)</i>
Group Housing
Urban Loft Building
Service Business - General
Child Care, Center - Minor
Entertainment, Indoor Recreation Facility
Entertainment, Outdoor Recreation Facility
Medical Care, Clinic and Office
Mini Storage
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area